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DEPARTMENT OF STATE

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Memorandum of Conversation

DATE: December 13, 1954

Bureau of FAR EASTERN AFFAIRS 7800 Department of State

SUBJECT: Ratification of Mutual Defense Treaty

PARTICIPANTS:
Dr. George Yeh, Chinese Foreign Minister
Dr. Wellington Koo, Chinese Ambassador
Dr. Tan, Minister, Chinese Embassy
Mr. Robertson, Assistant Secretary for Far Eastern Affairs
Mr. McConaughy, Director, Office of Chinese Affairs

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Foreign Minister Yeh asked when the President planned to send the Mutual Defense Treaty to the Senate.

Mr. Robertson thought it would be sent to the Senate as soon as the new Congress convened, the first week in January.

Dr. Yeh said that the Chinese Government would like to submit the Treaty to the Legislative Yuan at about the same time. However, the Legislative Yuan would adjourn at the end of December and would not reconvene until February. Dr. Yeh expressed the hope that the exchange of notes of December 10 would not be submitted for ratification.

Mr. Robertson said that the Department did not intend to recommend formal ratification of the notes but the notes have to be transmitted to the Senate with the Treaty for its information, and the changes were that the notes would be publicized in the course of the hearings before the Senate Foreign Relations Committee. There was nothing harmful to the interests of the Chinese Government in the language of the notes. On the contrary, he believed that publicity for the notes would actually strengthen the position of the Chinese Government, because it associated the two governments more closely than ever before in the joint enterprise of defending the treaty area. The Communists certainly would like nothing about the exchange of notes. The exchange would undoubtedly be construed generally

as advantageous

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as advantageous to the Chinese Government. The exchange of notes was a constructive step and knowledge of this step would improve the position of the Chinese Government.

Foreign Minister Yeh said that the Chinese Government could file the treaty with the Legislative Yuan while it was not in session. Hence the filing might be done in January with a view to immediate consideration by the Legislative Yuan in early February. Alternatively the Generalissimo might wan to consider calling a special session of the Legislative Yuan in January.

Ambassador Koo asked if there would be a public hearing on the treaty.

Mr. Robertson said this, of course, was inevitable under customary procedures.

Dr. Yeh asked if the treaty would be submitted to the Senate after the Manila Pact.

Mr. Robertson said the Manila Pact had already been submitted and hearings had been held, although no vote had been taken.

Mr. Robertson said the well-nigh universal approval of the treaty negotiation in all U.S. quarters was very gratifying. The administration was pleased at the non-partisan acceptance of the treaty. Republicans and Democrats were equally in support of it.

to be seen how it worked

Dr. Yeh asked if there would be any embarrassment to the U.S. Government if the Legislative Yuan were called into special session and approved the treaty before the U.S. Senate did so?

Mr. Robertson said there would be no embarrassment at all.

Dr. Yeh said he thought that as a precaution he should advise the Assistant Secretary that there would probably be some degree of opposition to the treaty in the Legislative Yuan: - by some KMT members, as well as by the two small minority parties.

Mr. Robertson asked what would be the basis of this opposition?

Dr. Yeh said that it would be based on the apparent restriction on Chinese Government freedom of action as to the Mainland. Without going into the question of the Chinese Government's capabilities for independent military action, the critics would say that the treaty unnecessarily ties the hands of the Chinese Government. Dr. Yeh did not think the opposition would be serious or that it would do any real harm, but he felt that he should serve notice in advance that this limited degree of opposition was to be expected.

Mr. Robertson

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Mr. Robertson said that there was no reason for such opposition to influence our action. He felt that both governments should feel free to go ahead and "let the chips lie where they fall." He thought there might be some slight opposition to the treaty in this country, but none had been manifested so far.

Yeh asked if ratification was expected before February?

Mr. Robertson said it was hard to prognasticate. The Administration expected to ask for early action. Quick ratification is undoubtedly desirable, for both this treaty and the Paris Agreements. Senator George would be the new Chairman of the Senate Foreign Relations Committee and was definitely favorable to the treaty. He had expressed strong approval of the treaty negotiations when he was consulted by Mr. Robertson in Georgia last October.

Dr. Yeh remarked that his Government would have to send the exchange of notes to the Legislative Yuan also. Since the U.S. Government was transmitting the notes, there would be awkward questions if the Chinese Government did not voluntarily reveal the text of the notes at the same time.

Mr. Robertson thought that both Governments would be well advised to be quite frank about the notes when the time came. By voluntarily disclosing the notes, we would prevent suspicions from arising, and forestall criticism. The notes would be an asset rather than a liability if handled in an open matter-of-fact manner.

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